Contentious Chamber
Decision on the merits 80/2025 of April 24, 2025
File number: DOS-2023-00846
Subject: Sanction for non-compliance with an injunction issued by the Data Protection Authority in its decision 172/2022

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Romain Robert and Christophe Boeraeve, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), (hereinafter "GDPR");
Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");1
Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");
Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;
Considering decision 172/2022 of November 24, 2022, issued by the Data Protection Authority (hereinafter "DPA") against the defendant ("decision 172/2022");
Considering the documents of the procedure and having heard the parties during the hearing;
Has made the following decision regarding:
The defendant:
Real Estate Agency Y, represented by its counsel, Master Nicolas Hamblenne, hereinafter "the defendant".

1 The DPA recalls that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), as well as the new internal regulations of the DPA, came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber that begin from that date. The new LCA is available via this link: https://www.ejustice.just.fgov.be/cgi loi/change lg.pl?language=nl&la;=N&cn;=2017120311&table; name=wet, and the internal regulations via this link: https://www.gegevensbeschermingsautoriteit.be/publications/reglement-van-interne-orde-van-de-gegevensbeschermingsautoriteit.pdf. Files initiated before June 1, 2024 — of which the present file is a part — remain subject to the provisions of the LCA and the internal regulations as they existed before that date.

I. Facts and procedure
1. On November 24, 2022, the Contentious Chamber issued decision 172/2022, based on a complaint. This decision imposed an injunction on the defendant following several findings of violations of the GDPR, which were to be remedied by December 26, 2022. The decision also contained a warning, ordering not to publish, without valid consent, the location data of sold properties.
2. The defendant had a period of 30 days from the notification of decision 172/2022 to submit a request for substantive review, which would have suspended the execution of the decision and allowed the defendant to present factual or legal arguments that could challenge the initial position of the Contentious Chamber. No such request was submitted. The defendant also did not file an appeal before the Market Court against decision 172/2022, which thus became final on December 27, 2022.
3. On the contrary, on December 5, 2022, the Contentious Chamber received an email from the defendant (also addressed to the complainant in decision 172/2022 - hereinafter "the complainant"), in which the defendant claimed to have complied with an injunction included in decision 172/2022 (which also seemed to indicate that it accepted the content of the injunction pronounced, including the warning).

4. In parallel, the complainant indicated that a search conducted via the Google search engine on the postal address of his property led to the website and Facebook page of the defendant. It therefore appeared that, contrary to its statements, the defendant had potentially not complied with the injunction issued against it.
5. By email dated February 15, 2023, the Contentious Chamber informed the Inspection Service ("SI") of the insufficiency of the elements provided by the defendant to demonstrate that it had complied with decision 172/2022, leaving it to the SI to assess the significance of this.
6. On February 20, 2023, the SI initiated an investigation on its own initiative, in accordance with Article 63, 6° of the LCA2, due to serious indications suggesting that an injunction had not been complied with (hereinafter, "investigation"). The purpose of the investigation was to verify whether the defendant had indeed complied with decision 172/2022. To this end, the SI examined whether the defendant had followed up on the two following elements:

2 Article 63, 6° of the LCA provides that: "The inspection service may be seized: [...] on its own initiative, when it finds that there are serious indications of the existence of a practice likely to give rise to a violation of the fundamental principles of the protection of personal data, within the framework of this law and laws containing provisions relating to the protection of the processing of personal data." The SI can act on its own initiative when it identifies serious indications of a possible violation of data protection rules. This prerogative allows it to intervene even in the absence of a complaint.

- An injunction regarding the exercise of the rights to erasure (art. 17.1 of the GDPR) and opposition (art. 21.2 of the GDPR) of the complainant;
- The warning regarding the deletion of certain personal data, in the absence of valid consent justifying their retention/online presence, in light of articles 5.1 a), c) and f), and 6.1 of the GDPR.

7. On April 24, 2023, the Supervisory Authority (SA) concluded its investigation and submitted the investigation report (“report”) to the President of the Contentious Chamber in accordance with article 91.2 of the LCA.
8. On September 1, 2023, the Contentious Chamber decided, under article 95.1.1° and article 98 of the LCA, that the case could be addressed on the merits.
9. On October 9, 2023, the defendant acknowledged receipt of the email dated September 1, 2023, and indicated that its counsel had not been copied, contrary to the indications in the report. An additional deadline was requested in this context and was granted.
10. On November 22, 2024, the Contentious Chamber invited the defendant to provide additional observations on the findings of the report. In particular, the location icon of the property subject to the initial complaint on a map from Google Maps had been moved, but not deleted, making the location of the property more difficult but not impossible. The Contentious Chamber wished to verify whether similar steps had been taken for other properties mentioned in the report, and whether the combination of the imprecise location with other publicly accessible information still allowed for the identification of their address. The defendant was also invited to specify other elements examined in the SA's report.
11. Following the hearing on December 9, 2024, the defendant's counsel submitted various documents, including the pleading notes and elements related to the documents deleted from the website. On December 23, 2024, the minutes of the hearing were submitted to the defendant, who did not provide any comments in this regard.
12. On April 4, 2025, the Contentious Chamber informed the defendant of its intention to impose an administrative fine as well as the amount thereof, in order to give the defendant the opportunity to communicate its observations before a potential sanction could be imposed. On April 17, 2025, the Contentious Chamber received the defendant's response in this regard and requested that it provide the revenue for the 2024 financial year, accompanied by supporting documents for its observations. The defendant responded that the final accounting figures for the 2024 financial year had not yet been officially determined. On April 18, 2025, the Contentious Chamber then requested to receive the most recent revenue figure that had been officially determined. On April 22, 2025, the defendant provided

the 2024 annual accounts, but did not communicate the revenue figure.

II. Motivation

II.1. Preliminary remarks: context and follow-up of decision 172/2022

13. On July 6, 2022, a complainant filed a complaint with the APD against the defendant for failing to respond to their requests for erasure and opposition, following the purchase of a property sold through the defendant (hereinafter "property 1"). The complaint concerned the continued online presence, after the sale, of the sales advertisement and thus of data related to this property, which also constituted personal data.

14. In its decision 172/2022, the Contentious Chamber found that the defendant had maintained online personal data despite the complainant's requests for erasure and opposition, and this for commercial promotion purposes. The processing concerned a set of elements, but the Contentious Chamber specifically ruled on the continued online presence of the exact address of the property (including via Google Maps) and the cadastral references of property 1 (hereinafter "location data"), despite the (finalized) sale of the property.

The Contentious Chamber assessed whether the legitimate interest of the defendant could justify the continued online presence of this data. It found the absence of any interest of the defendant that would prevail over the complainant's right to privacy and concluded that the processing was not based on a valid legal basis.

Consequently, the Contentious Chamber concluded that the rights of the complainant must be respected.

15. Decision 172/2022 had two components:

- on the one hand, an injunction imposed on the defendant to erase the location data of property 1, to cease any further processing of this information, and to inform the APD of the measures taken within 30 days ("injunction").
- on the other hand, a warning instructed the defendant to refrain from publishing – without a valid legal basis – the location data when accompanied by images of already sold properties ("warning"). The warning specifically targeted situations similar to those denounced in the complaint but for other sold properties that were the subject of advertisements on the defendant's online platforms.

16. The present discussion takes place in the above context. For reasons of expediency, the Contentious Chamber chose to rule solely on the follow-up to the execution of

3 The reference for the complaint file is "DOS-2022-02927".

4 Decision 172/2022 was adopted within the framework of the procedure provided for in Article 95 of the LCA, following an individual complaint lodged by a concerned person. This context explains why the Contentious Chamber limited its examination to certain specific data – namely the postal address and cadastral references – without extending its analysis to other data that may have been published in the advertisement.

the injunction. Although the SI report includes findings related to other violations as well as compliance with the warning, the Contentious Chamber considers it important to focus solely on the partial non-compliance with the injunction, which is a specific issue that justifies the issuance of a separate decision. This choice not only respects the scope of the present procedure but also avoids any violation of the principle of non bis in idem, by not re-examining breaches similar to those addressed in decision 172/2022.

17. In this regard, and as a matter of surplus, the Contentious Chamber regrets that most of the elements raised by the defendant in the course of the procedure relate to issues on which it has already had to rule in the context of decision 172/2022. Since it had 30 days from the notification of the decision:

(i) either to request that the matter be addressed on the merits and thus present its arguments regarding the content of decision 172/2022 (and in particular the legal bases applicable to the

treatments if the defendant considered that consent was not required);
(ii) or to file an appeal before the Market Court,
the Contentious Chamber can no longer accept these arguments presented out of time. In particular, a simple request from the defendant to exercise option (i) above would have allowed it to present its arguments on the merits within the framework of a procedure under Article 98 of the LCA, which it has, however, only presented in the current procedure for non-compliance with an injunction that has already become final.
The Contentious Chamber notes that the defendant has voluntarily chosen not to exercise either of these options and not to comply with the corrective measures pronounced since it disagreed with them. The Contentious Chamber notes that these arguments had already been dismissed during the initial procedure and that the defendant should therefore reasonably have known that these arguments would not be considered a solid basis for justifying non-compliance with decision 172/2022. In this context, the Contentious Chamber takes note of the arguments made in this regard by the defendant but allows itself not to take them into account since they were raised late, in order to focus solely on the core of the present decision, namely the non-compliance with the decision as such, and not the circumstances that should have been raised in the context of the initial procedure. They will therefore not be summarized or specifically addressed if they concern elements that should have been the subject of the substantive procedure and not the present procedure.

II.2. Discussion

II.2.1. Non-applicability of the GDPR

II.2.1.1. Position of the defendant

18. In its first argument, the defendant contests the applicability of the GDPR, on the grounds that the information in question — such as a postal address, a location, or images of real estate — would not fall under the notion of "personal data" within the meaning of Article 4.1) of the GDPR.
19. The defendant argues that these elements, published without any mention of the name or identity of the sellers or buyers, do not allow for the identification, directly or indirectly, of a natural person. According to it, a complete postal address or a simple indication of locality would not allow for the identification of a person, unless one has additional information such as access to a specific database (like the land registry) or prior knowledge of the residents. It adds that all data related to the buyers is deleted "as soon as a file is closed (i.e., signature of the sale deeds at the notary [...])", which, according to it, would exclude any possibility of subsequent identification.

II.2.1.2. Position of the SI

20. The SI recalls that decision 172/2022 of the Contentious Chamber had already established that the publication of images of a property accompanied by location data constitutes a processing of personal data within the meaning of Article 4.1) of the GDPR.
21. It specifies that a postal address consists of several elements – street, number, postal code, municipality – and believes that a combination of these elements, even partial, can allow for the identification of the property and its owner. It therefore considers that this data falls within the scope of the GDPR. The SI emphasizes that in certain situations, such as in the case of a locality with fewer than 800 inhabitants, the mere mention of this locality, combined with images of the property, may be sufficient to identify the property, and consequently, a person.

5 Conclusion of the defendant, §7, p. 10.
6 For reference, location data includes, in this case, the postal address as well as the cadastral references (see also §20). Furthermore, the Contentious Chamber notes that location data can also be provided via the GM map.
7 Decision 172/2022, §§2 – available at
https://autoriteprotectiondonnees.be/publications/ordonnance-n-172-2022.pdf.
8 Inspection file – Report: pp 21 and 22.

II.2.1.3.
Position of the Dispute Chamber
22. According to Article 4.1) of the GDPR, personal data is defined as “any information relating to an identified or identifiable natural person (hereinafter referred to as ‘data subject’).” This identification may be direct (e.g., name, surname) or indirect, when elements—taken individually or in combination—allow for the association of information with a natural person.
23. The consistent case law of the Court of Justice of the European Union (“CJEU”) confirms that the possibility of indirectly identifying a person is sufficient to qualify information as “personal data.” In particular, the CJEU held in judgment C-479/229 that a person may be identifiable even without the mention of their name, provided that the totality of available information allows for reasonable identification, taking into account accessible means, context, and without requiring disproportionate effort. It is not required that the data controller can identify the data subject themselves; it is sufficient that a third party can reasonably achieve this, notably through cross-referencing with other accessible data. The Dispute Chamber shares the analysis of the SI that, in a locality of 800 inhabitants, the mere indication of this locality combined with the image of the real estate may suffice to identify the property and, if applicable, its owner.
24. Article 4.2) of the GDPR defines “processing” as “any operation or set of operations performed or not by automated means and applied to personal data or sets of personal data, such as […] dissemination or any other form of making available, […]”. Therefore, the online publication of a real estate advertisement—containing an address (complete or partial), photographs, cadastral references, as well as descriptive elements—constitutes processing of personal data.

9 Judgment of the CJEU (sixth chamber), of March 7, 2024, OC v European Commission, case C-479/22 P, ECLI:EU:C:2024:215, available at https://eur-lex.europa.eu/legal-content/FR/TXT/?uri=CELEX:62022CJ0479; In this case, the CJEU ruled that a press release published by OLAF, although it did not mention any names, nonetheless contained personal data as the combination of elements such as nationality, gender, parent’s profession, academic context, and the amount of a grant allowed for the indirect identification of the data subject. The Court recalls that information constitutes personal data if the identification of the person is reasonably possible, using accessible complementary data, taking into account the context of publication. It thus rejects the approach of the Court of the European Union, which had limited the analysis to an “average reader,” and confirms that identifiability must be assessed objectively, considering the digital environment, the accessibility of data, and the reasonable cross-referencing of available information.
10 Article 2.a of the Convention of January 28, 1981 for the protection of individuals with regard to automatic processing of personal data, B.S., December 30, 1993 (Convention 108); Judgment of the CJEU C-582/14 of October 19, 2016, Patrick Breyer v. Federal Republic of Germany, ECLI:EU:C:2016:779, paragraph 43; Judgment of the CJEU C-434/16 of December 20, 2017, Nowak v. Commissioner for Data Protection, ECLI:EU:C:2017:994, paragraphs 31 and 35; Judgment VIN (CJEU, November 9, 2023, C-319/22, ECLI:EU:C:2023:837), paragraphs 43 to 62; Conclusions of Advocate General Sharpston of December 12, 2013 in joined cases C-141/12 and C-372/12 Y.S., paragraph 45; DOCKSEY, H. HIJMANS, “The Court of Justice as a Key Player in Privacy and Data Protection: An Overview of Recent Trends in Case Law at the Start of a New Era of Data Protection Law,” EDPL Review, 2019, p. 300; See also FR. ZUIDERVEEN BORGESIUS, “Singling out people without knowing their names - Behavioural targeting, pseudonymous data, and the new Data Protection regulation,” Computer Law & Security Review, vol. 32-2, 2016, pp. 256-271; and FR. ZUIDERVEEN BORGESIUS, “The Breyer Case of the CJEU - IP Addresses and the Personal Data Definition,” EDPL, 1/2017, pp. 130-137.

25. The Disciplinary Chamber confirms the analysis already adopted in its decision 172/2022 and consequently rejects the first plea of the defendant, which argues that the GDPR would not apply on the grounds that there are neither personal data nor processing.
II.2.2. Violation of the rights of the defense

26. The defendant argues that their counsel was not informed of the progress of the case, despite an express request and a recommendation from the SI11. They believe that this omission has infringed upon their rights of defense.
27. The Disciplinary Chamber notes that the report indeed mentioned that the defendant wished for communications to also be sent to their counsel and invited the Disciplinary Chamber to take this into account. However, this was merely a recommendation, lacking any binding procedural character.
28. In this case, the notification of September 1, 2023, was duly sent to the defendant, who indicated that their counsel had not received it. The Disciplinary Chamber took this observation into account and adjusted the deadlines for submissions to ensure that the later communication of the case file to the defendant's counsel did not reduce their submission deadline.
29. The Disciplinary Chamber therefore considers that the defendant does not demonstrate how their rights of defense have not been respected.

II.2.3. Compliance with the injunction

II.2.3.4.

Position of the SI

30. The checks carried out by the SI revealed the following findings12:
- On the defendant's website, checks on February 20 and March 13, 2023, confirmed the removal of certain elements, notably images containing cadastral references as well as the street and number of property 1. However, the mention of the locality remained visible. Furthermore, although the exact location of the property was no longer displayed via Google Maps, this map remained present on the site, accompanied by the name of the locality.
- On the defendant's Facebook page, a post dated April 6, 2022, still showed, as of February 20, 2023, images of property 1 along with its full address13. While the cadastral references were not visible on that date and the street and number had been removed by March 13, 2023, the mention of the locality remained publicly visible.
- Regarding the Google search engine, the SI found that the defendant's Facebook page still appeared in the search results associated with the complainant's address as of March 13, 2023. However, during a new check on March 21, 2023, these results had disappeared from the first three pages of search results.

31. The SI recalls that decision 172/2022 expressly found the absence of a legal basis to justify the processing of the complainant's personal data. The SI specifies that this decision was clear and imposed on the defendant that the complainant's data should no longer be processed. The SI therefore considers that the defendant should have removed all elements constituting a postal address, including the mention of the locality, in order to comply with decision 172/2022. It emphasizes that the combination of images of the property and the indication of the municipality constitutes processing of personal data, as it allows for the identification of the complainant, especially since the locality in question had approximately fewer than 800 inhabitants in January 2016, which increased the risk of identification given the restricted geographical context14.
32. Regarding the technical incapacity invoked by the defendant for not removing certain information, the SI believes that this issue could have been resolved by deleting the relevant posts. The defendant could have simply republished certain information related to the sold properties without mentioning the postal address or cadastral references. Moreover, the SI notes that the technical impossibility was only invoked for the website, while certain information is also mentioned on the defendant's Facebook page.
33. Concerning the presence of personal data via a Google search, the SI specifies that Google updates its indexing every 2 months, which could explain why the defendant's Facebook page still appeared on March 13, 2023. Therefore, the SI believes that it cannot be concluded that the defendant had not effectively removed the postal address from their website and Facebook page.
34. Based on these elements, the SI concluded in its report that the defendant did not comply with the injunction set forth in decision 172/2022.

14 Inspection file – Report: p. 45; Documents No. 5.

II.2.3.5.
Legal Discussion
II.2.3.5.1.
On the principle of non bis in idem15
35. The defendant argues that a new investigation and decision concerning the same facts that led to decision 172/2022 would infringe upon her fundamental rights. She particularly claims that she would be "seriously harmed if [she is] not allowed to proceed with the continuation of such processing, as this would violate her fundamental rights (or those of her manager), notably the freedom to conduct a business." She adds that "a new investigation/decision on the same facts, after [she] has already taken measures to comply with the previously rendered decision, is disproportionate and constitutes double jeopardy for the same offense (non bis in idem)."
36. The Contentious Chamber recalls that the principle of "non bis in idem," invoked by the defendant, entails that "no one can be prosecuted or punished a second time for an offense (even if differently qualified) for which they have already been acquitted or convicted by a final judgment in accordance with the law and the criminal procedure of each country."
37. The Contentious Chamber emphasizes that the present procedure does not aim to challenge the legal analysis carried out in decision 172/2022, nor to reassess, even indirectly, the rights of the complainant. It exclusively aims to verify compliance with the injunction contained therein, the non-compliance of which constitutes a separate offense under Article 83.6 of the GDPR.
38. Therefore, this decision no longer targets past processing for which an offense has already been established (for which decision 172/2022 has become final) but aims to pursue the non-compliance with the injunction contained in said decision as a new offense. In this case, the first decision aimed to enforce the rights of a data subject (which is an offense under Article 83.5 of the GDPR), while the present one aims to sanction the non-execution of an injunction adopted by an administrative authority (which is a distinct offense under Article 83.6 of the GDPR), constituting a separate fact and, in particular, subsequent to the first conviction for the facts subject to the initial complaint.
39. In light of the above, the principle of non bis in idem is not relevant in this case. The breach subject to this decision is subsequent to the conviction for the initially pursued facts and constitutes a distinct offense from that which led to decision 172/2022.

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II.2.3.5.2.
On the allegedly abusive nature of the investigation
40. The defendant claims to have informed the APD, within the thirty-day period, of the complete execution of the injunction that had been imposed on her. She argues that it would, by nature, be impossible to prove a negative fact, such as the deletion of data. On this basis, she considers that the investigation conducted by the SI is abusive.
41. The Contentious Chamber cannot subscribe to this argument.
42. First, while an email was indeed sent to the APD on December 5, 2022, it contained no evidence to concretely verify the effective implementation of the injunction pronounced, particularly regarding the deletion or cessation of processing. No document submitted to the file corroborates the execution of the injunction, apart from the aforementioned email, which remains purely declarative. However, in accordance with Article 5.2 of the GDPR, the data controller is obliged not only to comply with the GDPR but also to demonstrate compliance in an explicit, verifiable, and documented manner. A unilateral declaration, even in response to an injunction, cannot suffice to meet this obligation.
43. Second, it is inaccurate to assert that it would be impossible to demonstrate the deletion of data. In practice, there are several means to document such deletion, including: screenshots attesting to the absence of data on the relevant media, modification or deletion logs in management tools (CMS or CRM), detailed attestations from subcontractors, internal deletion policies, or technical reports.
44. Third, the report from the SI prepared prior to the present procedure does not constitute an administrative decision, nor a sanction, nor even a binding measure producing legal effects concerning the defendant. It is a preparatory document, exclusively pertaining to the investigation phase, whose

function is to record factual observations, identify potential breaches, and transmit these elements to the Contentious Chamber so that it can exercise its decision-making authority independently. The elements retained by the SI constituted objective and sufficiently serious indications to presume a failure to comply with decision 172/2022. Under Article 63, 6° of the LCA, the SI was therefore fully authorized to initiate an investigation on its own initiative.

45. In this regard, the defendant contests the veracity of the complainant's statements, claiming that her Facebook page did not appear in Google search results, and invokes technical factors such as algorithms or caching effects. However, the findings of the SI are not based solely on Google search results but on dated screenshots, notably from February 20, 2023, demonstrating that the location data of the

The complainant's data was still present on the defendant's Facebook page. These objective elements, noted more than two months after the injunction, were sufficient to establish a serious indication of non-compliance with decision 172/2022.

46. Based on the above (and in particular the serious indications of non-compliance with the injunction and the defendant's own competencies), the Contentious Chamber considers that the investigation by the SI and its initiation cannot be deemed abusive.

II.2.3.5.3.
On the alleged new request and the exclusion from Facebook

47. The defendant argues that the complainant's request, aimed at obtaining the deletion of his location data still present on the Facebook page, would constitute a distinct request from that which led to decision 172/2022. The defendant concludes that their retention cannot be interpreted as a non-compliance with said decision. The defendant also indicates that Meta, as the provider of the Facebook platform, also has control over the data published on the platform as a joint data controller.

48. The Contentious Chamber cannot follow this analysis. The text of decision 172/2022 does not restrict the scope of the injunction to a specific medium or channel. The injunction imposes on the defendant the general obligation to "no longer process" the specified location data. This obligation inherently includes the cessation of all relevant processing carried out across all channels controlled by the defendant. The mention of Google Maps in the operative part (referred to as "including Google MAPS" in decision 172/2022) was intended solely to illustrate a vector for disseminating the data to be deleted, without limiting or expanding the scope of the injunction, which applies to any form of processing regardless of the medium.

49. The argument that the Facebook page is distinct from the website, or partially managed by Meta, cannot be upheld. This page is administered by the defendant, who publishes commercial content there, including real estate data such as that referred to in decision 172/2022. The defendant thus has effective control over the disseminated content and can solely decide on its modification or deletion, without Meta's intervention.

50. The defendant's argument effectively amounts to limiting the injunction issued by restricting its scope to a single dissemination channel. However, decision 172/2022 imposes on the data controller the obligation to terminate all processing concerned by the injunction.

51. In light of the above, the Contentious Chamber considers that the retention of the complainant's location data on the Facebook page – and more broadly, on any medium controlled by the defendant – indeed constitutes a (partial) non-compliance with the injunction.

II.2.3.5.4.
Technical limitations and maintenance of the Google Maps card

52. The defendant invokes constraints related to the management tool of its website to justify the impossibility of removing certain fields, particularly the one dedicated to the postal address of the property. It claims to have removed the street and number, then the entire relevant field, while maintaining the Google Maps card, on the grounds that it would present a legitimate interest in the context of its commercial activities.

53. The Contentious Chamber recalls that it is the responsibility of the data controller to ensure that its tools and technical service providers allow it to comply with its legal obligations. A functional limitation

of its CMS, or a failure to configure its service provider, cannot exempt it from its obligations.
54. In any case, and as noted by the SI16, the Contentious Chamber observes that no technical impossibility has been put forward regarding the Facebook page, on which the complete address of property 1 was still visible as of February 20, 2023. Furthermore, the mention of the municipality remained accessible both on the website and on Facebook, including on March 13, 2023. This retention of data constituted a continuation of processing, in violation of the injunction contained in decision 172/2022.
55. Regarding specifically the Google Maps card, the Contentious Chamber notes that, despite the apparent removal of the textual field dedicated to the postal address, the geolocation tool remains integrated into the defendant's website and continues to indicate the location perimeter of the property, coupled with other information allowing precise identification of the property. The maintenance of this card is therefore incompatible with the injunction for complete deletion and cessation of processing.
56. In conclusion, the maintenance of the Google Maps card indicating the location perimeter of the property constitutes a partial non-compliance with the injunction, as this card remains accessible as of March 31, 2025, in violation of the injunction for complete deletion, but also for the cessation of all processing of the complainant's location data.
57. The defendant argues that it had a legitimate interest in publishing, on its website and its Facebook page, images of property 1 accompanied by information regarding its location, specifying that it had been sold and indicated that it had voluntarily retained other information (notably the location perimeter via Google Maps) believing that their deletion would infringe upon its fundamental rights and interests. Therefore, considering that its right prevailed, the defendant confirmed that it chose not to delete all the mentioned data and thus acknowledges the voluntary non-compliance with the injunction issued against it. The Contentious Chamber notes in this regard that the defendant's observations should have been made within the deadlines and through the appeal channels available to it.

16 Inspection file – Report: p. 50.

were open after the notification of decision 172/2022. However, it voluntarily chose not to comply.

II.2.3.5.5.

Finding of non-compliance with the injunction

58. The findings of the SI, established during three successive inspections (February 20, March 13, and March 21, 2023), objectively highlighted a late, incomplete, and partial execution of decision 172/2022.
59. There is no evidence in the file that the defendant has carried out a complete deletion of the data, nor that it has ceased processing them on all media under its control. The notification sent to the APD on December 5, 2022, is purely declarative and contains no technical justification. Furthermore, the defendant admitted to having voluntarily retained certain elements, notably the Google Maps card indicating the locality, due to commercial interests it deemed legitimate, with the mention of the locality via the Google Maps card still being publicly accessible as of March 31, 2025.
60. While certain elements (such as the street, number, or cadastral references) have indeed been deleted, decision 172/2022 mandated a complete deletion of location data, cessation of all processing, and notification to the APD regarding the execution. A "partial" or "selective" execution, carried out according to the defendant's own assessment, confirms that the injunction has not been fully complied with.
61. The Contentious Chamber further notes that the partial execution of decision 172/2022 does not result from a misunderstanding or an insurmountable technical constraint. On the contrary, the elements submitted to the file demonstrate that the defendant knowingly retained certain location data (such as the mention of the municipality via the Google Maps card), believing it could prioritize its commercial interests over a decision that had become final. Such an attitude, based on a unilateral assessment of the scope of its obligations, is incompatible with the principle of accountability established by Article 5.2 of the GDPR. The absence of an appeal against decision 172/2022 cannot justify selective or conditional execution.
62. Consequently, it follows that the partial non-compliance is characterized as conscious, selective,

persistent, and legally unfounded. From a temporal perspective, the first finding of non-compliance, established on February 20, 2023, reveals that the defendant had been in violation for 56 days. A second inspection, conducted on March 13, 2023, confirmed the persistence of non-deleted data, bringing the duration of objectively established non-compliance to 76 days.

63. Furthermore, the persistent presence of certain elements – notably the locality via the Google Maps card – remains verified until March 31, 2025 (more than 26 months after the execution deadline). Even if this date is subsequent to the findings of the SI, the Contentious Chamber

recalls that this data was expressly referenced in decision 172/2022. Its prolonged maintenance, without technical or legal justification, confirms the intention of non-compliance with the injunction.

64. For the reasons outlined above, the Contentious Chamber finds that the defendant has not complied with the injunction set forth in decision 172/2022. The Contentious Chamber holds that the behavior of the defendant constitutes a failure to execute this injunction. This failure, prolonged over a period of more than 26 months, results from a deliberate choice not to fully execute the decision, on the grounds of preserving its commercial interests despite the binding nature of said decision.

III. Regarding corrective measures and sanctions

65. As an independent administrative authority, the Contentious Chamber has the exclusive power to determine the appropriate corrective measures and sanctions, in accordance with Articles 58.2 and 83 of the GDPR and Articles 100 §1 to 102 of the LCA, once a violation of the GDPR is established. The exercise of this competence involves not only assessing the existence of an infringement but also determining, independently, the most appropriate response in light of the objectives pursued by the GDPR. This discretionary power has been recognized by the Market Court in several judgments (July 7, 2021, September 6, 2023, December 20, 2023)17, which highlighted the extent of the margin of appreciation granted to the Contentious Chamber regarding the choice, nature, and scope of the sanctions to be imposed.

66. Article 100 of the LCA18 lists the corrective measures and sanctions that the Contentious Chamber may adopt when it finds an infringement of data protection rules. These measures, enumerated in points 1° to 16° of Article 100 of the LCA, include, in particular, the imposition of sanctions and fall within the framework of the powers recognized to the supervisory authority by Article 58.2 of the GDPR, which aim to ensure the effectiveness of fundamental rights in data protection.

67. Among these measures, the administrative fine is subject to particular regulation. Provided for in Article 58.2, i) of the GDPR as well as Articles 100, 13° and 101 of the LCA, it is subject to the conditions of Article 83 of the GDPR19.

17 Market Court, 19th Chamber A, judgment of July 7, 2021, 2021/AR/320, (accessible here) pp. 37-47.; Market Court, 19th Chamber A, judgment of February 19, 2020, 2020/AR/1160, (accessible here) pp. 31-34.; Market Court, 19th Chamber A, judgment of December 20, 2023, 2023/AR/817, (accessible here) pp. 57, 61 and 62.

18 LCA, Articles 100 to 103.

19 "1. Each supervisory authority shall ensure that the administrative fines imposed under this article for violations of this regulation, referred to in paragraphs 4, 5 and 6, are, in each case, effective, proportionate and dissuasive;

2. Depending on the specific characteristics of each case, administrative fines may be imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points a) to h), and j). In deciding whether to impose an administrative fine and in determining the amount of the administrative fine, due regard shall be given, in each individual case, to the following elements:

III.1. Established violation

68. Based on the considerations outlined above in this decision, the Contentious Chamber finds a failure to comply with the injunction issued in decision 172/2022, which may be sanctioned under Article 83.6 of the GDPR.

III.2. Measures imposed in the case at hand.

69. In order to determine the most appropriate corrective measures and sanctions to remedy the

established violations, prevent their recurrence, and ensure effective application of the GDPR, the Contentious Chamber conducted a thorough analysis of all relevant circumstances of the case. On this basis, it established, on the one hand, the applicable corrective measures in this instance and, on the other hand, examined the appropriateness of imposing an administrative fine as well as the methods for determining its amount.

70. The Contentious Chamber took into account the observations made on April 17, 18, and 22, 2025, by the defendant in the context of the form entitled "form for response to a proposal for administrative fine sanction" which was notified to them on April 4, 2025 (hereinafter "the form"). These observations were examined exclusively in relation to the measure proposed in said form, namely the administrative fine.

71. It should be noted that this form is solely intended to provide the defendant, in their capacity as the author of the violation, the opportunity to present their observations on the appropriateness, determination, and amount of the proposed fine prior to its imposition.

a) the nature, severity, and duration of the violation, taking into account the nature, scope, or purpose of the processing concerned, as well as the number of affected individuals and the level of harm they have suffered;
b) whether the violation was committed intentionally or negligently;
c) any measures taken by the data controller or the processor to mitigate the harm suffered by the affected individuals;
d) the degree of responsibility of the data controller or the processor, considering the technical and organizational measures they have implemented under Articles 25 and 32;
e) any relevant previous violations committed by the data controller or the processor;
f) the degree of cooperation established with the supervisory authority to remedy the violation and mitigate any potential negative effects;
g) the categories of personal data concerned by the violation;
h) how the supervisory authority became aware of the violation, including whether, and to what extent, the data controller or the processor notified the violation;
i) when measures referred to in Article 58(2) have previously been ordered against the data controller or the processor for the same purpose, compliance with those measures;
j) the application of approved codes of conduct under Article 40 or approved certification mechanisms under Article 42; and
k) any other aggravating or mitigating circumstances applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, as a result of the violation.

20 As clarified by the Market Court in its ruling of January 22, 2025 (Market Court, 19th Chamber A, 2024/AR/1205, pp. 18–19), the form for response to a proposal for sanction is solely intended to gather observations regarding the determination and amount of the fine, and does not allow for reopening the debate on the violations already established (Market Court, 19th Chamber A, ruling of January 22, 2025, 2024/AR/1205, pp. 18 and 19).

72. In its response to the form, the defendant reiterates that it has fully complied with the injunction set forth in decision 172/2022, within the deadlines. It claims to have deleted the main data (postal address, cadastral references), ceased data processing, notified the complainant, and informed the DPA of the measures taken. It argues that the decision did not explicitly target certain platforms — such as the Facebook page or Google Maps — nor the mention of the locality. Finally, it emphasizes its ongoing cooperation with the DPA and its good faith, citing technical and legal constraints specific to its activity.

73. The Litigation Chamber has duly noted this and has taken it into account in its assessment of the corrective measures to be adopted in this case.

III.2.1.
Corrective Measures
III.2.1.1.
Objective and Legal Framework of the Administrative Fine

74. In accordance with Article 58.2 i) of the GDPR and Article 100, §1, 13° of the LCA, the Litigation Chamber may impose an administrative fine in the event of a breach of GDPR obligations, in addition to or in place of other corrective measures, depending on the specific circumstances of each case.
75. According to Article 83.1 of the GDPR, any fine must be effective, proportionate, and dissuasive in light of the specific circumstances of each case. The administrative fine can serve a dual purpose: it has a punitive character, sanctioning unlawful behavior, and a dissuasive character, preventing any recurrence. In this regard, it is part of a sustainable regulatory logic, which does not merely sanction an isolated infringement but also aims to prevent the repetition of violations, avoid their trivialization, promote proactive compliance by data controllers, and ensure a high level of protection of personal data.
76. To assess the appropriateness of imposing an administrative fine and to determine its amount, the Litigation Chamber has discretionary power. Article 83.2 of the GDPR lists the criteria to be considered when assessing the appropriateness of a fine and determining its amount, including the nature, gravity, duration of the violation, its intentional or negligent character, and the categories of data concerned.
77. In the absence of a legally binding interpretation of these provisions, the Litigation Chamber refers to the Guidelines of the European Data Protection Board ("EDPB"), and in particular to the Guidelines 04/2022 on the calculation of administrative fines ("Fine Guidelines"), which establish a framework for the concrete application of the criteria in Article 83.2 and aim to ensure a harmonized, objective, and proportionate approach within the European Union.

78. In accordance with the Fine Guidelines, the Litigation Chamber adopts an integrated approach to the criteria set out in Article 83.2 of the GDPR. These criteria are analyzed jointly to determine, on the one hand, whether the imposition of a fine is justified and, on the other hand, to set its amount.
79. Finally, the Litigation Chamber specifies that it is not required to analyze criteria that are manifestly irrelevant in this case. Only the criteria relevant to the specific case will be examined to ensure a proportionate and targeted analysis.
80. In this case, the Litigation Chamber considers that the imposition of a fine is appropriate given the certain severity of the infringement, determined in particular by (i) the duration of the infringement, which lasted over two years, and (ii) the selective execution by the defendant of the injunction, believing it was within its rights to continue processing the data despite a decision from the DPA that expressly ordered it to cease doing so, against which it could have filed an appeal or a request for substantive review if it wished to contest the substance. This behavior, far from indicating negligence, thus results from a conscious and deliberate choice to only partially comply with the injunction. The Litigation Chamber concludes that the infringement results from a deliberate act within the meaning of Article 83.3 of the GDPR.
81. These elements — further elaborated below — justify imposing an administrative fine rather than a lesser sanction such as a warning or reprimand, which do not present the necessary dissuasive effect to prevent future violations, particularly as it appears from the file that the absence of a fine in the context of decision 172/2022 is precisely one of the elements that led it not to contest that decision and simply to partially ignore its content. The administrative fine constitutes, in this sense, a necessary, proportionate measure fully compliant with the objectives of the GDPR.

III.2.1.2.
Determination and Justification of the Amount of the Fine

82. The Litigation Chamber now proceeds to determine the amount of the fine, in accordance with the Fine Guidelines. The relevant criteria have been analyzed in light of the specific circumstances of the case and identified. Only the criteria relevant to the specific case are retained and examined below.

III.2.1.2.1.
Classification of the Violation under the GDPR24

83. The failure to comply with an injunction issued by an authority (as is the case here) constitutes a distinct and specific infringement under Article 83.6 of the GDPR, punishable by a fine of up to 20 million EUR, or in the case of an enterprise, up to 4% of its total annual worldwide turnover, whichever

is higher.
84. This infringement does not arise from a processing operation as such, but from the failure to comply with an injunction aimed at stopping certain processing activities.
III.2.1.2.2.
Severity of the Violation in the Case at Hand25
85. The assessment of the severity of a violation, within the meaning of Articles 83.2 a), b), and g) of the GDPR, generally relies on the analysis of the characteristics of the data processing involved: its nature, scope, purpose, the number of individuals affected, as well as the level of potential or actual harm. However, in this case, the violation sanctioned does not concern processing as such, but rather the failure to comply with an injunction issued by the DPA.
86. In this context, the assessment of severity must be adapted: it is conducted not in light of the characteristics of the underlying processing, but through the specific circumstances related to the non-execution of the injunction.
87. In this case, it should first be noted that the failure to comply with an injunction constitutes an infringement of Article 83.6 of the GDPR, thus falling under the higher fine level of Article 83 of the same Regulation.
88. The Contentious Chamber notes that (i) the non-execution of the injunction is partial and unique, (ii) the injunction had a local scope and concerned non-sensitive data (location data) and indirect identifiers, and (iii) the injunction involved only a limited number of affected individuals given the local nature of the agency.
89. However, the Contentious Chamber observes that the partial non-execution of the injunction persisted until March 31, 2025, which is more than 26 months after the expiration of the legal deadline for execution of Decision 172/2022. The Contentious Chamber emphasizes that no element in the file justifies this prolonged partial execution over a period of more than two years, particularly given that the defendant should have known that it was already in violation (as opposed to a procedure where the Contentious Chamber had to rule on the infringement as such).

[…] Screenshot taken on 31/03/3035 at 15:15

24 EDPB - Guidelines 04/2022, pts. 49 and 50.
25 EDPB - Guidelines 04/2022, pts. 17, 51 to 62.

90. The level of proven harm remains relatively moderate, given the local and specific nature of the processing covered by the injunction.
91. In any event, the violation committed by the defendant results from intentional behavior on its part, in that:
- The defendant formally received Decision 172/2022, of which it could neither ignore the existence nor the legal scope, and had the opportunity to either appeal to the Market Court or request substantive processing under Article 98 of the LCA, which it confirmed it had voluntarily chosen not to do.
- Several substantial aspects of the injunction were not complied with, notably the removal of the mention of the locality appearing on the Google Maps card. The defendant acknowledged having deliberately retained certain elements, considering their removal contrary to its business interests.
- The corrective measures were delayed and were only implemented after the intervention of the SI. No serious technical or legal obstacle was raised or demonstrated to justify this prolonged non-execution of the injunction, which exacerbates the severity of the situation.
- It also appears from the explanations of the defendant that if this decision had been accompanied by a fine, it would likely have been fully executed – or at least contested through appeal.

The Contentious Chamber thus concludes that the behavior of the defendant is deliberate, within the meaning of Article 83.2.b) of the GDPR, and cannot be classified as mere negligence.
92. In light of the elements outlined above, the Contentious Chamber concludes that the established violation is of medium severity.
III.2.1.2.3.
Consideration of Turnover26

93. To determine the relevant turnover, the supervisory authorities should apply the definition of the concept of enterprise as adopted by the CJEU for the purposes of Articles 101 and 102 of the TFEU.
94. Furthermore, Article 83.6 of the GDPR provides that the total annual worldwide turnover of the previous financial year must be used for the calculation of the administrative fine. In this regard, the term "previous" must be interpreted in accordance with the case law of the CJEU in competition law, so that the relevant event for the calculation of the fine is the

26 EDPB - Guidelines 04/2022, pts. 63 to 69; 112 to 131.

decision of the supervisory authority regarding the fine, and not the time of the sanctioned infringement.
95. In this case, the calculation of the fine should therefore have been based on the figures for the fiscal year 2024. To determine this, the Contentious Chamber referred to the public information available in the Central Balance Sheet Office of the National Bank of Belgium ("NBB"), where it found that:
- The annual accounts for 2024 were not yet available (this information having been published in recent years between the end of April and mid-June);
- As a company that can file annual accounts under the abbreviated model, the annual accounts for 2021, 2022, and 2023 as published at the NBB do not include any information under the heading "turnover" in the income statement; and
- Consequently, the most recent public information regarding the defendant's turnover relates to the figures for the year 2020 as published in 2021, from which it appears that the turnover amounted to 149,979 EUR for 2020 (more precisely for the period from October 1, 2019, to September 30, 2020) and 331,107 EUR for 2019.
96. On this basis, the Contentious Chamber repeatedly requested the defendant to provide information regarding the turnover for the previous year, in order to rely on the most accurate and recent information in this regard. The defendant did not respond to these requests.

III.2.1.2.4.
Determination of the starting amount

97. Taking into account the maximum legal amount, the global annual turnover of the data controller, and the severity of the violation, the Contentious Chamber concretely decides to calculate the starting amount for the category of infringements as follows:
- Calculation of the maximum legal amount: 4% of the total annual (global) turnover of the defendant based on the most recent available figures amounts to 5,999 EUR. This amount is below the ceiling of 20,000,000 EUR. Therefore, the highest fine retained is 20,000,000 EUR ("maximum legal amount").
- Adjustment of the maximum legal amount, according to the severity of the violation: in this case, the average severity of the violation justifies adjusting the maximum legal amount to 10% and 20% of the maximum legal amount provided for in Article 83.6 of the GDPR (20,000,000 EUR), i.e., between 2,000,000 EUR and 4,000,000 EUR27.

27 EDPB - Guidelines 04/2022, pts. 60.

In view of the specific case, the Contentious Chamber retains a theoretical starting amount of 2,000,000 EUR, i.e., 10% of the maximum legal amount.
- Adjustment of the theoretical starting amount: According to the EDPB methodology, the latest known turnover figures place the defendant in the category of companies whose turnover is between 0 and 2,000,000 EUR. This range being very broad, the Contentious Chamber considered that using the turnover from 2020 did not raise any particular issues since (i) it could not allow for the imposition of an amount within a lower range than that provided in this decision and (ii) it is highly unlikely that the turnover for 2024 will exceed the threshold of 2,000,000 EUR given the public information included in the more recent balance sheets.
On this basis, the Contentious Chamber decides to adjust the starting amount one last time, in order to take into account the annual turnover of the company. As it is a small enterprise falling within the

lowest threshold, the Guidelines on Fines propose applying a rate of 0.2% and 0.4% to adjust the theoretical starting amount. As it is a sole proprietorship whose revenues are in the lower range of the applicable threshold, it was ultimately decided to apply a rate of 0.25%.
98. In conclusion, the adjusted starting amount of the fine is set at 5,000 EUR.

III.2.1.2.5. Aggravating and mitigating circumstances[28]

99. The Contentious Chamber justifies the imposition of an administrative fine in concrete terms, taking into account other aggravating or mitigating circumstances listed in Article 83.2 of the GDPR. It should be noted that each criterion set out in Article 83.2 of the GDPR has only been considered once in the overall assessment under Article 83.2 of the GDPR, so the criteria of Art. 83.2.a), b), and g) – which have already been used to assess the severity of the violation 2 - will not be examined here.
100. The Contentious Chamber recalls that it is not required to examine criteria that are irrelevant, including neutral criteria, i.e., those that are not considered either mitigating or aggravating. For example, the ordinary duty of cooperation being mandatory, this factor must therefore be deemed neutral (and not considered as a mitigating factor).
101. In this regard, the defendant's persistent refusal to provide its updated turnover, which forced the Contentious Chamber to rely on figures from nearly 5 years ago, constitutes a

28 EDPB - Guidelines 04/2022, pts. 70 to 111.; Brussels Court of Appeal (Markets Section), X against GBA, judgment 2020/1471 of February 19, 2020.

flagrant absence of cooperation and was taken into account when calculating the final amount of the fine and to apply a 20% increase to the initially proposed fine.
102. Thus, although each item of Article 83.2 was subject to thorough examination by the Contentious Chamber, only those that led to the characterization of the existence of a mitigating or aggravating circumstance are presented in this sanction form.
103. Therefore, the adjusted starting amount is set at 6,000 EUR.

III.2.1.2.6. Effective, proportionate, and deterrent nature of the fine[29]

104. In accordance with Article 83.1 of the GDPR and the Guidelines of the EDPS, any administrative fine must be effective, proportionate, and deterrent in light of the specific circumstances of each case. The Contentious Chamber will verify below whether the final amount of the fine, namely 6,000 EUR, meets these requirements.
105. In this case, the defendant voluntarily partially complied with the injunction set out in decision 172/2022, without contesting it despite their disagreement, on the grounds that the decision was not accompanied by a fine and that the appeal costs would be excessive. In this context, a fine of 6,000 EUR meets the effectiveness criteria: it asserts the binding nature of the decisions of the DPA and corrective measures and reminds that their full execution is mandatory in the absence of an appeal in this regard.
106. Supervisory authorities must ensure that the amount of the fine is proportionate to the violation, assessed as a whole, taking into account various factors such as the financial capacity of the company to pay.
107. The principle of proportionality, as defined in the GDPR, states that the measures adopted must not exceed what is appropriate and necessary to achieve the legitimate objectives of the regulation in question. In the case of fines, this means that their amount must not be disproportionate in relation to the objectives pursued[30], the severity of the violation, as well as the size and financial capacity of the concerned company[31]. Therefore, supervisory authorities must ensure that the amount of the fine is proportionate to the violation, assessed as a whole, taking into account various factors such as the financial capacity of the company.
108. In response to the form, the defendant argued that the initially proposed fine was excessive, citing a ratio equivalent to 3.33% of its annual turnover and the crisis affecting the sector.

29 EDPS - Guidelines 04/2022, pts. 132 to 144.
30 Case T-704/14, Marine Harvest/Commission, point 580, referring to case T-332/09, Electrabel/Commission, point 279.
31 See, in this regard, case C-387/97, Commission/Greece, point 90, and case C-278/01, Commission/Spain, point 41, in
which the fine had to be "on the one hand, adapted to the circumstances and, on the other hand, proportionate to the
established breach as well as to the payment capacity of the concerned Member State."

109. Consequently, the Contentious Chamber has determined that the defendant is a sole proprietorship whose revenue is directly linked to the income of the individual who manages it. Therefore, the imposition of a fine affects the defendant as it would directly affect an individual and should be treated accordingly.
110. However, the defendant's characterized and repeated refusal to provide its most recent revenue has forced the Contentious Chamber to rely on potentially erroneous figures, which prevents it from verifying the ratio of the fine amount to its most recent revenue, particularly noting that the revenue for 2019 was more than double that of 2020. Furthermore, the year 2020 does not appear to be representative in light of the COVID-19 health crisis, which imposed lockdowns and halts to non-essential activities in Belgium (including those of the defendant). The Contentious Chamber may therefore suspect that the unwillingness to provide more recent figures could reflect bad faith on the part of the defendant, which wishes to be assessed based on a revenue significantly lower than its usual annual revenue and to boast of a higher ratio than the actual ratio between the fine amount and its usual revenue.
It follows that the defendant itself has prevented the Contentious Chamber from verifying the exact ratio of the revenue corresponding to the fine and therefore cannot reproach the Contentious Chamber for not being able to take its observations into account in this regard, as no one can benefit from their own wrongdoing.
111. In this case, several criteria, such as the financial capacity of the defendant and the economic and social context in which it operates, have also been evaluated to determine whether the fine is proportionate, indicating that the proposed fine is proportionate32:
- Economic viability and financial capacity of the company: No concrete element in the file establishes that the imposition of the fine compromises the economic viability of the company or that the defendant would be financially unable to honor it.
- Evidence of loss of value: No evidence submitted in the file indicates that the fine would compromise the viability of the activity or lead to a loss of economic value.
- Economic and social context: the defendant has raised a sectoral crisis. Recent news confirms that the real estate sector is currently undergoing a crisis due to rising mortgage rates, which has led to a lack of dynamism in the sector, although this translates into a limited impact on the number of real estate transactions and their amounts. The defendant having not provided updated figures to ascertain (or not) a decrease in revenue related to this crisis, the Contentious Chamber is therefore unable to determine whether this factor has indeed influenced the defendant's activities.
112. Therefore, the amount of EUR 6,000 takes into account the severity of the violation, without jeopardizing the economic sustainability of the defendant. The Contentious Chamber confirms that, in its assessment, this amount remains effective in light of the specificities of the financial situation of the defendant and its manager.
113. The deterrent nature of fines is crucial to ensure compliance with the rules established by Union law. A fine must be sufficiently deterrent so that the data controller does not continue the violation. Several factors determine the deterrent nature of a fine: the nature and amount of the fine, as well as the likelihood of its imposition, are determining elements in this regard. A fine must be sufficiently high to have a significant financial impact on the offending company, while remaining proportionate to the severity of the violation. In other words, the criterion of deterrence overlaps with that of effectiveness.
114. If a supervisory authority considers that a fine is not sufficiently deterrent, it may consider increasing it. In certain cases, it may even apply a deterrent multiplier to enhance its deterrent effect.

This multiplier can be adjusted at the discretion of the supervisory authority to ensure that the deterrent objectives are fully achieved.

115. Considering all of the aforementioned factors, the amount of EUR 6,000 is deterrent while remaining proportionate to the size of the entity concerned.

III.2.1.2.7.

Conclusion

116. In light of the detailed analysis of the criteria set out in Article 83.2 of the GDPR, the Contentious Chamber considers it justified in this case to impose an administrative sanction in the amount of EUR 6,000 due to the non-compliance with the injunction included in decision 172/2022.